IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
COURT-IV

ITEM No. 407
CP(CAA)91/ND/2022

IN THE MATTER OF:
Shree Durga Home Appliances Private limited .... Applicant
With Summer Cool Home Appliances Limited

Under Section 230-232 of the Companies Act, 2013

Order delivered on 03.06.2025

CORAM:
SHRI MANNI SANKARIAH SHANMUGA SUNDARAM
HON'BLE MEMBER (JUDICIAL)
SHRI ATUL CHATURVEDI
HON'BLE MEMBER (TECHNICAL)

HYBRID HEARING (PHYSICAL & VC)

PRESENT:
For the Applicant : CS Amitabh
For the Respondent :
For the RD : Mr. Sumit Kansal & Mr. Aryan Gupta, Advocates

ORDER

PCS Amitabh is present on behalf of the applicants through VC. Ld. Counsel for the RD is present physically. None appears on behalf of the Income Tax Department as well as Official Liquidator.
Report filed by the RD is on board.
Ld. Counsel for the applicants seeks time to file rejoinder to the report filed on behalf of the RD.
Since there are no representation on behalf of the OL and Income Tax Department, it is presumed that they have no representation and have no objection with regard to scheme of arrangement mentioned in the Application.
The applicants are directed to file an undertaking with reference to income tax outstanding available for transferor and transferee company before the next date of hearing.
List it on **29.07.2025.**

Sd/-
(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

Sd/-
(MANNI SANKARIAH SHANMUGA SUNDARAM)
MEMBER (JUDICIAL)

Abhishek